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Case Number: 25AVCV00022 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

IRENE PENA, individually and as surviving spouse of Decedent RAYMUNDO RIVERA, and MICHELLE RIVERA,

Plaintiffs,

v.

COUNTY OF LOS ANGELES, a public entity, LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, a public entity, AARON TANNER, individually and as a Deputy Sheriff, and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV00022

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a wrongful death and civil rights action arising from the death of Decedent Raymundo Rivera (Decedent) following a pursuit by deputies of the Los Angeles County Sheriff's Department (LASD).

On January 8, 2025, Plaintiffs Irene Pena (Pena) and Michelle Rivera (Rivera) (together Plaintiffs) filed their complaint against Defendants County of Los Angeles (County), LASD, (together Defendants), and Aaron Tanner (Tanner).

On March 4, 2025, the County and LASD filed a Notice of Removal to Federal Court.

On April 25, 2025, the United States District Court for the Central District of California remanded the case to Superior Court of California, County of Los Angeles.

On May 1, 2025, the Notice of Remand was filed in the present action.

On June 13, 2025, Plaintiffs filed a Motion for Leave to file a First Amended Complaint.

On July 30, 2025, Defendants filed their Opposition to Plaintiffs' Motion for Leave.

On August 11, 2025, the Court deemed the First Amended Complaint filed as of June 13, 2025. (Minute Order dated August 11, 2025.)

On August 27, 2025, Defendants demurred to Plaintiffs' First Amended Complaint.

On September 23, 2025, the Court sustained the Demurrer to the First Amended Complaint with leave to amend.

On October 16, 2025, Plaintiffs filed their Second Amended Complaint.

On October 29, 2025, Defendants demurred to the Second Amended Complaint.

On February 23, 2026, the Court sustained the Demurrer to the Second Amended Complaint with leave to amend.

On March 11, 2026, Plaintiffs filed their Third Amended Complaint against Defendants LASD, the County, and Tanner asserting causes of action for (1) wrongful death, (2) negligence, (3) failure to supervise and train, and (4) violation of the Bane Act.

Pena is the surviving spouse of Decedent, and Rivera is the adult daughter of Decedent. (TAC, ¶¶ 3-4.) Plaintiffs allege that on August 11, 2018, Decedent fled on foot and was pursued by deputies of LASD, including Defendant Tanner, though the circumstances under which the pursuit arose remain unclear. (TAC, ¶¶ 31-32.) After fleeing on foot, Decedent sought refuge within a hollow pillar at a WinCo supermarket to evade capture by the deputies, which Plaintiffs state was hazardous and confined with no safe means of escape. (TAC, ¶ 32.) Plaintiffs claim the deputies intentionally left Decedent stuck in the pillar despite having the means to rescue him, ultimately leading to his death. (TAC, ¶ 33.) Plaintiffs further contend the deputies falsified official reports which misled investigators and the public, and that Plaintiffs detrimentally relied on said reports, which caused them to believe Decedent's death was an accident. (TAC, ¶¶ 34-35.) Plaintiffs claim they first became aware of wrongdoing on Defendants' and Tanner's part on May 28, 2024 via a lawsuit filed by Tanner's ex-girlfriend, which detailed the deputies' misconduct and intentional decision to leave Decedent in the pillar. (TAC, ¶ 35.)

On April 1, 2026, Defendants demurred to the Third Amended Complaint (TAC).

On June 11, 2026, Plaintiffs filed their Opposition to the Demurrer (Opposition).

On June 26, 2026, Defendants filed their Reply.

Defendant Tanner has not appeared in the case.

II. Preliminary Procedural Issues

Meet and Confer Requirement – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve with the demurrer a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Here, Defendants provide the Declaration of Blessing O. Ekpezu (Ekpezu Declaration), counsel for Defendants, for satisfaction of the meet and confer requirement. Ekpezu states that on March 20, 2026, he sent an email to Plaintiffs' counsel outlining the grounds for Defendants' intended demurrer to the TAC, but that Plaintiffs' counsel has not agreed to withdraw the TAC. (Ekpezu Decl., ¶ 3.) Because the parties did not meet and confer in person, by telephone, or by video conference, and because Ekpezu does not state that Plaintiffs did not respond or failed to meet and confer in good faith, the Court finds that the meet and confer requirement has not been satisfied.

However, a determination that the meet and confer process was not sufficient is not grounds to overrule a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).) Accordingly, the Court will consider the Demurrer on the merits notwithstanding Defendants' noncompliance.

III. Request for Judicial Notice

Defendants' Request for Judicial Notice – Defendants request the Court take judicial notice of (1) the Court's February 23, 2026 Minute Order and (2) Plaintiffs' Third Amended Complaint filed on March 11, 2026.

California Evidence Code section 452 permits judicial notice being taken of the records of any court in California. (Evid. Code, § 452, subd. (d).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

Here, the Court notes a request for judicial notice of the TAC is unnecessary, given the Court must consider and take as true all factual allegations within the TAC to properly rule on Defendants' Demurrer. Regardless, the Court finds that both

documents are records of the California Superior Court, County of Los Angeles, have been sufficiently identified and provided by Defendants, and were served along with the request on Plaintiffs on March 31, 2026, providing sufficient notice through the moving papers.

Accordingly, Defendants' Request for Judicial Notice is GRANTED.

IV. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

“[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.) Thus, where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

The liberal policy favoring amendments is not without limitation. In response to a demurrer and prior to the case being at issue, a complaint “shall not be amended more than three times, absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action.” (Code Civ. Proc., § 430.41, subd. (e)(1).) However, the “three-amendment limit shall not include an amendment made without leave of the court pursuant to Section 472, provided the amendment is made before a demurrer to the original complaint or cross-complaint is filed.” (Ibid.) California Code of Civil Procedure section 472, subdivision (a) states that “[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.”

V. Discussion

Application – Defendants demurrer to the TAC in its entirety and all causes of action asserted therein without leave to amend for failure to state facts sufficient to constitute a cause of action pursuant to California Code of Civil Procedure section 430.10, subdivision (e) on two grounds: (1) the action is time-barred under Government Code section 945.6, and (2) the action is time-barred based on Plaintiffs’ own allegations establishing inquiry notice of wrongdoing in 2018. (Demurrer, p.

3:6-21.)

a. Time-Barred Pursuant to Government Code Section 945.6

Defendants first demurrer on the grounds that this action is judicially time-barred pursuant to Government Code section 945.6. Specifically, Defendants note that the County of Los Angeles rejected Plaintiffs' government tort claim on June 17, 2026, that Plaintiffs had until December 17, 2024, six months from the date of rejection, to file suit under Section 945.6, and that Plaintiffs' filing of the Complaint in the present matter on January 8, 2025 was twenty-two days late, rendering the Complaint fatally defective. (Demurrer, p. 5:7-10.)

In opposition, Plaintiffs claim Defendants' arguments have already been established by this Court as a factual dispute unresolvable on demurrer. (Opp., p. 6:24-7:2.) Plaintiffs further acknowledge that Defendants have identified no new judicially noticeable facts eliminating the existence of a factual dispute on the issue and dismissal on demurrer remains improper. (Opp., p. 7:7-8.) The Court agrees.

Defendants' Demurrer to the Second Amended Complaint came before the Court on February 18, 2026. On February 23, 2026, the Court issued its ruling on the issue of timeliness pursuant to Government Code section 945.6, in which Defendants' present arguments were thoroughly addressed.

In the Court's Ruling on the matter, this Court noted, in relevant part:

"Under Government Code Section 945.6, the operative date for triggering the six-month period to file is "the date such notice [of rejection of the claim] is personally delivered or deposited in the mail." [Emphasis added.] While the SAC refers to a "June 17, 2024 rejection of Plaintiffs' tort claim" there is no allegation as to the date of personal delivery or mailing of the rejection letter. The June 17, 2024 in the RJN does contain a mailing date. But while the Court may take judicial notice of the existence of the June 17, 2024 [letter of rejection], the Court may not take judicial notice of the truth of matters stated in the letter or of disputed adjudicative facts. (Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1749-1750.) Plaintiffs' counsel confirmed at the hearing on this matter that Plaintiffs dispute the statement in the June 17, 2024 as to the mailing date. The Court realizes that in the end the facts could show that the June 17, 2024 letter was mailed that same day. But as the Complaint does not recite a mailing date, the Court cannot resolve this disputed fact on demurrer. For that reason, the Court is inclined to bifurcate discovery and trial of the statute of limitations defense and set an early trial on that defense."

(Ruling on Submitted Matter dated February 23, 2026.)

As previously stated by this Court, the operative date is the date of personal delivery or the date of deposit of the rejection notice in the mail. The Court is not permitted under well-established law to take judicial notice of disputed or disputable factual allegations. Further, Plaintiffs represented that they do dispute this date and no date of mailing was pleaded in any complaint filed by Plaintiffs. Thus, the Court is not permitted now, as it was not in February, to take the June 17, 2024 date as indisputable fact on demurrer, as it is not judicially noticeable.

Defendant further argues in reply to Plaintiffs' argument that in light of the Court's February 23, 2026 ruling on the issue, Plaintiffs had ample opportunity to plead a mailing date and set forth factual contentions as to this issue in the TAC but failed to do so. (Reply, p. 2:20-25.)

Defendant has misread the Court's prior Order. The Court did not sustain the demurrer as to the issue of Government Code Section 945.6 notice, or require Plaintiff to provide additional allegations as to a mailing date. The February 23rd Order sustaining Defendants' demurrer to the Second Amended Complaint states, in relevant part, "the Demurrer is SUSTAINED WITH LEAVE TO AMEND regarding Plaintiffs' allegations supporting the supposed May 2024 accrual date and why and how the claim did not accrue earlier. Leave is not granted as to any other allegation." (Minute Order dated February 23, 2026 (emphasis added).) Defendants' argument that Plaintiffs' failure to include a purported mailing date to raise a disputable

issue in the TAC fails on the basis that doing so would be a direct violation of the Court's Ruling and would constitute noncompliance with the narrow leave granted for amendment of the Second Amended Complaint.

Furthermore, the Order limiting discovery to the questions of the mailing date and equitable tolling made clear that the Court regards the mailing date as a critical factual issue that should be resolved early in the litigation. The Court hopes the parties have made progress on this front.

Accordingly, Defendants' Demurrer on the grounds that the action is time-barred under Government Code section 945.6 is **OVERRULED**.

b. Time-Barred Based on Inquiry Notice

Defendants demur on the ground that Plaintiffs were on inquiry notice in 2018 after Decedent's death pursuant to the discovery rule, and accordingly, the action is time-barred by the statute of limitations. (Demurrer, p. 9:8-26.)

Plaintiffs argue in opposition that the facts pleaded in the TAC do not establish inquiry notice as a matter of law, that the TAC adequately alleges fraudulent concealment and equitable estoppel, and that Plaintiffs have alleged facts sufficient to show diligent inquiry and investigation into suspicions, all of which led to a conclusion that Plaintiffs legally had no recourse as no wrongdoing had been uncovered. (Opp., p. 4:244-5:2, 13-22.)

Shirk v. Vista Unified Sch. Dist. (2007) 42 Cal. 4th 201, 208-09 describes the necessity of timely claim presentation and the significance of claim accrual: "Accrual of the cause of action for purposes of the government claims statute is the date of accrual that would pertain under the statute of limitations applicable to a dispute between private litigants. [Citations.]" [Internal citations omitted.]

Thus, whether a claim is timely presented depends on when the claim accrued, as otherwise provided for in the law. On a demurrer, the complaint must allege timely presentation after accrual:

"Complaints that do not allege facts demonstrating either that a claim was timely presented or that compliance with the claims statute is excused are subject to a general demurrer for not stating facts sufficient to constitute a cause of action. [Citation.]"

(*Id.*, at 209 (internal citations omitted).)

Plaintiffs argue they have alleged additional facts in the TAC sufficient to allege a May 2024 accrual date of this action, relying on the discovery rule.

"The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have 'information of circumstances to put [them] on inquiry' or if they have 'the opportunity to obtain knowledge from sources open to [their] investigation.' [Citations.] In other words, plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal. 4th 797, 807-808 (internal citations omitted).)

"A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160, 86 Cal.Rptr.2d 645.) "In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show

diligence'; 'conclusory allegations will not withstand demurrer.' [Citation.]" (Fox, supra, 35 Cal.4th at 808.)

As the Supreme Court held in Fox:

"[T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period."

(Id at 808-09.)

Thus, Plaintiffs are charged with demonstrating through specific facts that they conducted a reasonable investigation of all potential causes of Decedent's death or wrongdoing on behalf of Defendants, during and after which they had no reason to suspect, nor reason to discover, facts supporting the present action against Defendants.

Here, taking Plaintiffs' factual assertions in the TAC as true, the Court finds Plaintiffs have not plead additional facts sufficient to support a cause of action with an accrual date of May 28, 2024, and in light of the circumstances alleged, the Court cannot conclude that Plaintiffs' actions and investigation into Decedent's death were reasonable.

Plaintiffs' TAC states that deputies falsified official reports, which stated Decedent's death was accidental, and that Plaintiffs relied on these falsified reports and believed the death was accidental. (TAC, ¶¶ 34-35.) The TAC further states that Plaintiffs were not aware that these reports were falsified until May 28, 2024, when Tanner's ex-girlfriend filed a lawsuit exposing the deputies' misconduct, including the deliberate decision to leave Decedent trapped and subsequently fabricate reports to conceal their actions. (TAC, ¶ 35.) Plaintiffs further allege they had "no reason to suspect wrongdoing or investigate further." (TAC, ¶ 19.)

Plaintiffs also allege a number of new facts in the TAC related to their belief that Decedent's death was accidental. Plaintiffs allege that upon Pena's learning of her husband's death, she repeatedly contacted the sheriff's department and investigators to obtain more information regarding the circumstances of his death, but received inconsistent and confusing information. (TAC, ¶ 35(I)-(J).) Pena contacted the coroner and attempted to contact the physician she was told had information regarding Decedent. ((TAC, ¶ 35(L)-(M).) After receiving additional conflicting and concerning information regarding the physician from Detective Fierro with LASD, Pena suspected she was not receiving clear or truthful information regarding Decedent's death, but states that because all official information provided to Plaintiffs characterized the death as accidental and in the absence of evidence suggesting wrongdoing, Plaintiffs believed the death was an accident. (TAC, ¶ 35(M)-(P).) However, Plaintiffs then allege that Pena attempted to obtain legal representation "to pursue justice for her husband," consulted with multiple attorneys "regarding the possibility of bringing legal action related to Decedent's death," and "spent several months communicating" with an attorney who agreed to further review the matter. (TAC, ¶ 35(Q)-(S).)

The factual allegations of Plaintiffs' TAC are inconsistent, stating both that they had no reason to suspect wrongdoing or investigate, and that Pena suspected she was not receiving truthful information regarding the circumstances of her husband's death, and after said suspicion arose, consulted with numerous attorneys to review the matter further, determine the existence of a legal cause of action, and get justice for her husband's death. These additional allegations included in the TAC, taken as true, indicate Plaintiffs were suspicious and on notice of potential wrongdoing or concealed information on behalf of Defendants and that Plaintiffs were questioning the circumstances surrounding Decedent's death. This suspicion gave rise to a responsibility to conduct a reasonable investigation into all potential causes of death.

Plaintiffs fail to plead facts sufficient to show a reasonable investigation. Plaintiffs allege that multiple attorneys declined representation based on the official reports provided by law enforcement, that the attorney who agreed to further review the matter determined that he could not locate a legal basis to pursue a claim, and Plaintiffs concluded no legal action could be

pursued “based on the official information provided by law enforcement.” (TAC, ¶ 35(R)-(U) (emphasis added.) In light of any allegation to the contrary, these statements show that Plaintiffs based their conclusion that the death was accidental only on the official information provided by law enforcement, which Pena knew was inconsistent and suspected was false. The TAC also implies the reviewing attorney based his conclusion on the same and provides no further factual information as to investigation of the matter, only stating the attorney reviewed information provided. No facts are alleged as to Plaintiffs’ own investigations, the documents and records requested or uncovered, the witnesses spoken to, or any additional steps taken to investigate the circumstances of Decedent’s death beyond reliance on conflicting official information.

Plaintiffs also do not allege that reasonable investigation into the circumstances of Decedent’s death would not have uncovered this information sooner than May of 2024 when Tanner’s ex-girlfriend filed a lawsuit publicizing the wrongdoing.

Taking Plaintiffs’ allegations in the TAC as true, the Court cannot conclude that Plaintiffs conducted reasonable investigation where they relied on official reports, the veracity of which they questioned, and where no factual allegations indicate that the Plaintiffs lacked the ability to have made an earlier discovery despite reasonable diligence.

Accordingly, Defendants’ Demurrer to Plaintiffs’ Third Amended Complaint is SUSTAINED.

i. Leave to Amend

The Court notes that the three-amendment limit in this case does not apply, as Plaintiffs filed their First Amended Complaint before a demurrer to the original complaint was filed and without leave of court pursuant to California Code of Civil Procedure section 472.

The Court finds in light of the above circumstances, there is a reasonable possibility of amendment to state an accrual date of May 2024. While the factual assertions within the TAC are contradictory to some extent, these contradictions may possibly be cured in light of additional allegations or factual circumstances, as may Plaintiffs’ failure to plead specific facts related to reasonable investigatory steps taken in light of their suspicions regarding the circumstances surrounding Decedent’s death.

In light of the liberal policy of amendment in California, the Court thereby sustains Defendants’ Demurrer with leave to amend regarding Plaintiffs’ allegations supporting the May 2024 accrual date, how and why the claim did not accrue earlier, and steps taken to reasonably investigate as required for their assertion of delayed discovery. Leave to amend is not granted as to any other allegation.

VI. Conclusion

Defendants County of Los Angeles and Los Angeles County Sheriff’s Department’s Demurrer to Plaintiffs’ Third Amended Complaint is SUSTAINED WITH LEAVE TO AMEND.

At the hearing on this matter, the Court will discuss whether the question of the mailing date of the June 17, 2024 rejection letter should be set for separate trial.